

WEBSITE DEVELOPMENT PAYMENT AGREEMENT AND PROMISSORY NOTE

Effective Date: _____

This Agreement is made by and between the Developer/Creditor and Client/Debtor identified below. Each may be called a "Party," and together, the "Parties."

Developer / Creditor	Prerak Ketankumar Patel
Address	1065 Solamere Dr. Apt. 207, Titusville, FL 32780
Phone	(321) 610-0582
Email	patel.prerak2798@gmail.com
Client / Debtor	
Client Address	
Client Phone / Email	

1. Services, Scope, and Client Materials

Developer will provide website design and development services for the Dolphin Island Tours website project (the "Website"). Only items listed below are included. Any other pages, features, integrations, redesigns, legal/compliance work, SEO, performance tuning, accessibility remediation, copywriting, consulting, or platform migration require written approval and separate payment.

- Website type: custom tour-booking website for a boat-tour / wildlife-tour business.
- Included pages: Home, Tours, Individual Tour Detail pages, Booking page, About, Contact, Login, Sign Up, Account, My Bookings, Forgot Password, Reset Password, and standard error / not-found pages.
- Included features: responsive frontend; tour listings and detail pages; date/time-slot selection; online booking flow; account registration/login; account/profile management; booking history; contact form; Square credit-card payment integration; booking confirmation emails; and admin dashboard for managing tours, time slots, bookings, images, page content, and core settings.
- Design direction: modern, mobile-friendly, responsive tourism website with a clean coastal / ocean-inspired visual style, clear calls to action, fast-loading pages, and user-friendly booking flow.
- Client materials required: business name, branding, logo files, final approved copy, tour descriptions, pricing, address/contact details, meeting instructions, legal pages and policy language, approved photos/videos, social links, email/contact destinations, and third-party access/credentials for hosting, domain, Square, email, analytics, or related services.
- Included pre-launch revisions: up to 2 reasonable rounds for copy placement, image swaps, minor design adjustments, and minor content edits within the approved scope. New pages, new functionality, new integrations, major redesigns, and substantial copy rewrites are additional work.

2. Client Cooperation, Approvals, and Timeline

Client must timely provide requested content, access credentials, approvals, legal language, tax/product information, branding assets, and other materials needed for the project. Developer may rely on Client-provided materials and approvals without independent verification. Delays, incomplete information, conflicting instructions, third-party issues, domain/hosting problems, payment processor issues, outages, or events outside Developer's reasonable control extend all timelines accordingly.

Development is estimated to take approximately 4 to 5 weeks after Developer receives the Down Payment and all required content, logins, approvals, and materials. This is an estimate, not a guaranteed completion date.

3. Price, Promissory Note, Down Payment, and Installments

Client acknowledges a total website development price of \$4,399.00 USD (the "Principal") plus a one-time finance fee of \$100.00 USD in place of interest, for a total amount owed of \$4,499.00 USD. By signing, Client promises to pay the Total Amount Owed under the schedule below, and this Agreement serves as a promissory note for the unpaid balance.

Client shall pay a non-refundable down payment of \$500.00 USD on or before May 27, 2026. After the Down Payment, the remaining balance is \$3,999.00 USD. Payments shall be made by Zelle. The first installment is due July 1, 2026. The minimum monthly installment is \$335.00 USD, except the final listed payment is the exact remaining balance due. Payments are non-refundable once made, except as required by non-waivable law.

Due Date	Amount	Notes
July 1, 2026	\$335.00	Monthly installment 1
August 1, 2026	\$335.00	Monthly installment 2
September 1, 2026	\$335.00	Monthly installment 3
October 1, 2026	\$335.00	Monthly installment 4
November 1, 2026	\$335.00	Monthly installment 5
December 1, 2026	\$335.00	Monthly installment 6
January 1, 2027	\$335.00	Monthly installment 7
February 1, 2027	\$335.00	Monthly installment 8
March 1, 2027	\$335.00	Monthly installment 9
April 1, 2027	\$335.00	Monthly installment 10
May 1, 2027	\$335.00	Monthly installment 11
June 1, 2027	\$314.00	Final payment

4. Late Payment, Default, Suspension, and Collection

A payment is late if not received within 5 calendar days after its due date. Client is in default if a payment remains unpaid after the grace period, a payment is reversed or charged back, or Client materially breaches this Agreement and fails to cure after notice. Developer may send default notice by email, text, certified mail, courier, or other reasonable written method using Client's last provided contact information.

Client has 10 calendar days after notice is sent to cure default. If not cured, Developer may declare the unpaid balance immediately due, suspend work, pause launch, limit or disable Website functionality/access, withhold credentials, terminate project services, retain administrative control until paid in full, and pursue lawful collection remedies. Client shall reimburse reasonable collection costs, court costs, permitted attorney's fees, collection agency fees, bank reversal fees, and reasonable time spent responding to payment disputes or chargebacks.

5. Acceptance, Launch, and Post-Launch Support

Client must review drafts, staging versions, revisions, and the final Website promptly. A deliverable is accepted if Client approves it, uses it in production, instructs Developer to launch it, or fails to provide a written rejection with reasonably specific issues within 5 calendar days after delivery for review.

For 3 months after launch, Developer will provide limited support for reasonable bug fixes related to delivered Website functionality, up to 3 major updates, and up to 6 minor updates. New features, redesigns, SEO, performance work, content writing, legal/compliance changes, accessibility remediation, migrations, integrations, additional pages/revisions, emergency work, and support after the support period are additional work billed separately.

6. Hosting, Third-Party Services, Backups, Security, and Data Loss

Unless expressly included in writing, this Agreement does not include domain, hosting, server, plugin/theme license, API, SMS/email platform, payment processor, maintenance, security, backup, software subscription, third-party content, or other ongoing operating costs.

Developer is not the provider of hosting, domains, payment processors, plugins, platforms, registrars, CRMs, APIs, email/SMS systems, or other third-party services. Client assumes the risks of those services, including downtime, policy changes, deprecations, breaches, data loss, outages, billing changes, disabled accounts, suspensions, vendor decisions, chargebacks, fraud, processor holds, account freezes, payout delays, bank errors, and customer disputes.

Unless Client separately purchases a written backup, monitoring, security, or maintenance service, Client is responsible for backups, credential hygiene, administrator access controls, account recovery, antivirus protections, and business continuity. Developer is not liable for data loss, data corruption, malware, hacking, unauthorized access, downtime, deletion of content, plugin conflicts, software defects, hosting/registrar/API failures, internet outages, Client actions, system failures, or actions by Client's staff, vendors, or anyone given access by Client.

7. Client Legal Compliance and Content Warranty

Client is solely responsible for Client's business operations, products, services, advertising claims, sales practices, taxes, customer communications, privacy practices, legal disclosures, refund/return terms, subscription terms, payment processor compliance, PCI duties applicable to Client, and compliance with laws, rules, regulations, platform policies, and industry requirements applicable to Client's business and Website.

Client must provide and approve all business-specific legal language, including privacy policies, terms, disclaimers, consent language, pricing/refund language, and compliance notices. Developer is not acting as Client's attorney, accountant, tax adviser, compliance consultant, cybersecurity provider, managed host, advertising agency, accessibility consultant, or data protection officer unless separately agreed in writing.

Client represents that all content, instructions, media, data, trademarks, logos, software, and materials supplied by or for Client are accurate, lawful, non-infringing, and authorized for use. Client must review the final Website for factual accuracy, legal compliance, and business suitability before launch and thereafter.

8. Ownership and License Until Paid in Full

Until all amounts due are paid in full, Developer retains ownership of developer-created work product, source files, custom code, design files, configuration work, and implementation materials to the maximum extent permitted by law. Client receives only a limited, revocable, non-transferable license to review and use the deliverables as allowed by Developer.

After full payment, Developer will transfer included and transferable administrative credentials and rights to the final deliverable. Developer's pre-existing tools, frameworks, templates, snippets, know-how, reusable code, and background materials remain Developer's property and may be reused for other projects.

9. No Warranty, No Guarantee, Limitation of Liability, and Indemnity

To the maximum extent permitted by law, the Website, services, and deliverables are provided "as is" and "as available" without warranties, including warranties of merchantability, fitness for a particular purpose, title, non-infringement, uninterrupted availability, security, accessibility/legal compliance, or compatibility with all future browsers, devices, plugins, platforms, or services. Developer does not guarantee sales, revenue, rankings, lead volume, conversion rate, uptime, security, accessibility/ADA/WCAG compliance, SEO/ad performance, email deliverability, processor approvals, legal sufficiency, or business outcomes.

To the maximum extent permitted by law, Developer will not be liable for indirect, incidental, special, consequential, exemplary, punitive, or enhanced damages, lost profits, lost revenue, lost opportunities, lost data, loss of goodwill/customers, business

interruption, or substitute service costs. Developer's total aggregate liability arising from this Agreement, the Website, or services will not exceed the amount actually paid to Developer under this Agreement.

Client shall defend, indemnify, and hold harmless Developer and Developer's agents from claims, demands, investigations, fines, penalties, liabilities, judgments, settlements, losses, costs, and expenses, including reasonable attorney's fees, arising from Client's business, products, services, content, payment disputes, regulatory issues, or use of the Website after delivery, except to the extent a final non-appealable judgment finds the claim was caused solely by Developer's intentional misconduct.

10. Abandonment, Force Majeure, Notices, and Relationship

If Client becomes non-responsive for 21 calendar days, fails to provide required content or approvals, or causes the project to stall, Developer may place the project on hold. If stalled for 45 calendar days or more, Developer may treat the project as abandoned, close the file, reallocate schedule capacity, and require a restart fee or new timeline before resuming. Amounts already paid remain non-refundable.

Developer is not liable for delay, interruption, or failure caused by events beyond Developer's reasonable control, including severe weather, fire, flood, power/internet outage, labor disruption, illness, emergency, civil unrest, cyberattack, supplier failure, platform/API outages, software bugs, government action, or third-party service suspension.

Notices may be sent by email, text, certified mail, courier, or any commercially reasonable written method to the last contact information provided. Electronic, scanned, PDF, and e-signatures are binding. Developer is an independent contractor and not Client's employee, agent, fiduciary, partner, joint venturer, franchisee, or legal representative.

11. Governing Law, Venue, Jury Waiver, and General Terms

This Agreement is governed by Florida law, without regard to conflict-of-law rules. Venue for any dispute shall be in _____, Florida, unless applicable law requires otherwise. To the maximum extent permitted by law, each Party waives trial by jury in disputes arising from or related to this Agreement.

This Agreement is the entire agreement between the Parties for the Website project and payment obligations and supersedes prior discussions on those subjects. Amendments and waivers must be in a writing signed by both Parties. Failure to enforce a provision is not a waiver. If a provision is held unenforceable, the rest remains effective to the maximum extent permitted by law. Client may not assign this Agreement without Developer's prior written consent. Developer may assign payment or collection rights to enforce this Agreement.

12. Signatures

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

DEVELOPER / CREDITOR	CLIENT / DEBTOR
Name: Prerak Ketankumar Patel	Name: _____
Signature: _____	Signature: _____
Date: _____	Date: _____

Florida Notary Acknowledgment

State of Florida

County of _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this ____ day of _____, 20____, by _____ and Prerak Ketankumar Patel, who are personally known to me or who have produced _____ as identification.

Notary Public Signature: _____

Print Name: _____

Commission No.: _____

My Commission Expires: _____

Notary Seal: _____

Payment Summary

Principal	\$4,399.00
Finance Fee	\$100.00
Total Amount Owed	\$4,499.00
Down Payment	\$500.00 due May 27, 2026
Remaining Balance After Down Payment	\$3,999.00
Monthly Payment Terms	\$335.00 minimum by Zelle starting July 1, 2026